

HOUSE No. 4496

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, September 18, 2025.

The committee on Financial Services, to whom was referred the petition (accompanied by bill, House, No. 1305) of Daniel J. Ryan relative to further regulating individual or group health insurance policies providing prescription drug coverage, reports recommending that the accompanying bill (House, No. 4496) ought to pass.

For the committee,

JAMES M. MURPHY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to help patients and reduce health care costs by ensuring patient adherence to medications.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, any policy,
2 contract or certificate of health insurance subject to chapters 32A, 175, 176A, 176B, 176G, 176I,
3 176J or 176Q of the General Laws, that provides prescription drug coverage in the state, must
4 permit and apply a pro-rated daily cost-sharing rate to prescriptions that are dispensed by a
5 network pharmacy for a partial supply if the prescriber or pharmacist determines the fill or refill
6 to be in the best interest of the patient and the patient requests or agrees to a partial supply for the
7 purpose of synchronizing the patient's medications.

8 No individual or group health insurance policy providing prescription drug coverage shall
9 deny coverage for the dispensing of a medication that is dispensed by a network pharmacy on the
10 basis that the dispensing is for a partial supply if the prescriber or pharmacist determines the fill
11 or refill to be in the best interest of the patient and the patient requests or agrees to a partial
12 supply for the purpose of synchronizing the patient's medications. The individual or group health

13 plan must allow a pharmacy to override any denial codes indicating that a prescription is being
14 refilled too soon for the purposes of medication synchronization.

15 No individual or group health insurance policy providing prescription drug coverage shall
16 use payment structures incorporating pro-rated dispensing fees. Dispensing fees for partially
17 filled or refilled prescriptions shall be paid in full for each prescription dispensed, regardless of
18 any pro-rated copay for the beneficiary or fee paid for alignment services.